

Prison Statistics India–2022

Executive Summary

Prisons – Types & Occupancy

Year	No. of Prisons	Actual Capacity of Prisons	No. of Prisoners at the end of the year	Occupancy Rate at the end of the year
2020	1,306	4,14,033	4,88,511	118.0%
2021	1,319	4,25,609	5,54,034	130.2%
2022	1,330	4,36,266	5,73,220	131.4%

- As per data provided by States/UTs.
- In 2020, Karnataka reported that 41 sub jails under the control of Revenue Department are not included due to lack of information from them. Further, 6 sub jails under Prison Department have been permanently closed.

Note: Figures as on 31st December of the respective year

1. The total number of prisons at national level has increased from 1,319 in 2021 to 1,330 in 2022 having increased by 0.8%.
2. The 1,330 prisons in the country consist of 574 Sub Jails, 428 District Jails, 148 Central Jails, 91 Open Jails, 42 Special Jails, 34 Women Jails, 10 Borstal Schools and 3 Other than the above Jails.
3. The highest number of jails was reported in Rajasthan (146) followed by Tamil Nadu (142), Madhya Pradesh (132), Andhra Pradesh (106), Odisha (92) and Uttar Pradesh (77). These Six (6) States together cover 52.3% of total jails in the country as on 31st December, 2022.
4. Delhi has reported the highest number of Central jails (14) in the country. States/UTs like Arunachal Pradesh, Meghalaya, A & N Islands, DNH & Daman Diu, Ladakh and Lakshadweep have no central jail as on 31st December, 2022.
5. Uttar Pradesh has reported the highest number of District jails (64). States/UTs like Goa, Chandigarh, DNH & Daman Diu, Delhi, Lakshadweep and Puducherry have no District Jail as on 31st December, 2022.
6. Tamil Nadu has reported highest number of Sub-jails (104). States/UTs like Arunachal Pradesh, Goa, Haryana, Meghalaya, Mizoram, Nagaland, Sikkim, Chandigarh, Delhi and Ladakh have no sub-jail in their States/UTs, as on 31st December, 2022.

7. Only 16 States/UTs were having Women Jails (34 Women Jails) with a total capacity of 7,080 in India. These States/UTs (Number of Jails) (Capacity) are – Rajasthan (7) (998), Tamil Nadu (5) (2018), Kerala (3) (232), Andhra Pradesh (2) (280), Bihar (2) (202), Gujarat (2) (410), Punjab (2) (608), Uttar Pradesh (2) (540), Delhi (2) (680), Karnataka (1) (100), Maharashtra (1) (262), Mizoram (1) (96), Odisha (1) (55), Telangana (1) (260), Tripura (1) (25) and West Bengal (1) (314) and the rest of 20 States/UTs have no separate Women Jail as on 31st December, 2022.
8. The actual capacity of prisons has increased from 4,25,609 in 2021 to 4,36,266 in 2022 (as on 31st December of each year), having increased by 2.5%. Number of prisoners lodged in various jails has increased from 5,54,034 in 2021 to 5,73,220 in 2022 (as on 31st December of each year), having increased by 3.5% during the period.
9. Out of the total capacity 4,36,266 in 1,330 prisons in 2022, the Central Jails of the country were having the highest capacity (1,97,052) followed by the District Jails (1,68,981) and the Sub Jails (47,270). Among the other types of jails, Special Jails, Women Jails and Open Jails were having a capacity of 7,573, 7,080 and 6,043 inmates respectively as on 31st December, 2022. The highest number of inmates were lodged in District Jails (2,64,534) followed by Central Jails (2,46,155) and Sub Jails (45,679) as on 31st December, 2022. The number of inmates in Women Jails was 4,258.
10. Uttar Pradesh has reported the highest capacity in their jails (capacity of 67,600 inmates in 77 jails contributing 15.5% of total capacity) followed by Bihar (capacity of 47,750 inmates in 59 jails contributing 10.9% of total capacity) and Madhya Pradesh (capacity of 29,715 inmates in 132 jails contributing 6.8% of total capacity).
11. Out of the 5,73,220 prisoners, 5,49,351 were male prisoners, 23,772 were female prisoners and 97 were transgender.
12. The occupancy rate has increased from 130.2% in 2021 to 131.4% in 2022 (as on 31st December of each year).
13. The highest occupancy rate was in District Jails (156.5%) followed by Central Jails (124.9%) and Sub Jails (96.6%). The occupancy rate in Women Jails was 60.1% as on 31st December, 2022.

14. Uttar Pradesh has reported the highest number of prisoners (1,21,609) in its jails contributing 21.2% followed by Bihar (64,914), Madhya Pradesh (48,857), Maharashtra (41,070), Punjab (30,801) and West Bengal (28,789) as on 31st December, 2022. These States together are contributing around 58.6% of total prisoners in the country.
15. Delhi has reported the highest occupancy rate (184.5%) followed by Uttarakhand (183.3%) Uttar Pradesh (179.9%), Meghalaya (167.2%), Madhya Pradesh (164.4%) and Maharashtra (161.4%) as on 31st December, 2022.
16. The capacity in 34 Women Jails was 7,080 with the actual number of prisoners in these Women Jails was 4,258 (Occupancy Rate: 60.1%) which includes (18) Transgender inmates also as on 31st December, 2022. The capacity of Women Inmates in other types of Jail (i.e. except Women Jails) was 24,077 with the actual number of women inmates in these jails was 19,532 (Occupancy Rate: 81.1%) as on 31st December, 2022.
17. Uttarakhand has reported the highest female occupancy rate (166.5%) followed by Bihar (146.8%) and Uttar Pradesh (128.2%). However, the highest number of female inmates were confined in the jails of Uttar Pradesh (4,809) followed by Bihar (2,938) and Madhya Pradesh (1,911).

Prisoners – Types & Demography

Year	No. of Convicts	No. of Undertrial Prisoners	No of Detenues	No. of Other Inmates	Total No. of Prisoners
2020	1,12,589	3,71,848	3,590	484	4,88,511
2021	1,22,852	4,27,165	3,470	547	5,54,034
2022	1,33,415	4,34,302	4,324	1,179	5,73,220

- As per data provided by States/UTs.
- Figures are as on 31st December of each year

- During the year 2022, a total of 18,04,787 inmates were admitted in various jails of the country and the admission of inmates has decreased by 0.1 % over 2021 (18,06,823 inmates).
- A total of (5,73,220) prisoners were confined as on 31st December, 2022 in various jails across the country. The number of Convicts, Undertrial inmates and Detenues were reported as 1,33,415, 4,34,302 and 4,324 respectively

accounting for 23.3%, 75.8% and 0.8% respectively at the end of 2022. Other prisoners accounted for 0.2% (1,179 prisoners) of total prisoners.

3. Convicted Prisoners

- a. The number of convicted prisoners has increased from 1,22,852 in 2021 to 1,33,415 in 2022 (as on 31st December of each year), having increased by 8.6% during the period.
- b. Out of total 1,33,415 convicts, the highest number of convicted prisoners were lodged in Central Jails (64.9%, 86,545 convicts) followed by District Jails (27.9%, 37,163 convicts) and Sub Jails (2.1%, 2,861 convicts) as on 31st December, 2022.
- c. Uttar Pradesh has reported the maximum number of convicts (20.4%, 27,209 convicts) in the country followed by Madhya Pradesh (16.3%, 21,761 convicts) and Maharashtra (6.0%, 7,998 convicts) at the end of 2022.
- d. Among the 1,33,415 convicts, 138 were civil convicts.

4. Undertrial Prisoners

- a. The number of undertrial prisoners has increased from 4,27,165 in 2021 to 4,34,302 in 2022 (as on 31st December of each year), having increased by 1.7% during this period.
- b. Among the 4,34,302 undertrial prisoners, the highest number of undertrial prisoners was lodged in District Jails (52.1%, 2,26,386 undertrials) followed by Central Jails (35.8%, 1,55,528 undertrials) and Sub Jails (9.8%, 42,652 undertrials) as on 31st December, 2022.
- c. Uttar Pradesh has reported the maximum number of undertrials (21.7%, 94,131 undertrials) in the country followed by Bihar (13.2%, 57,537 undertrials) and Maharashtra (7.6%, 32,883 undertrials) at the end of 2022.
- d. Among the 4,34,302 undertrial prisoners, only 44 were civil inmates.

5. Detenues

- a. The number of detenues has increased from 3,470 in 2021 to 4,324 in 2022 (as on 31st December of each year), having increased by 24.6% during this period.

- b. Among the 4,324 detenues, the highest number of detenues were lodged in Central Jails (80.0%, 3,458 detenues) followed by District Jails (15.4%, 665 detenues) and Special Jails (2.4%, 104 detenues) as on 31st December, 2022.
- c. Tamil Nadu has reported the maximum number of detenues (49.2%, 2,129) in the country followed by Jammu & Kashmir (12.6%, 546) and Gujarat (7.7%, 334) at the end of 2022.

6. Women Prisoners with Children

- a. There were 1,537 women prisoners with 1,764 children as on 31st December, 2022.
- b. Among these women prisoners, 1,312 women prisoners were undertrial prisoners who were accompanied by 1,479 children and 198 convicted prisoners who were accompanied by 230 children.

7. Age-group of the Prisoners

- a. As on 31st December, 2022 the maximum number of inmates (2,56,169 inmates, 44.7%) were belonging to the age group 18-30 years followed by the age group 30-50 years (2,43,809 inmates, 42.5%).
- b. 73,236 inmates (12.8%) were belonging to the age group above 50 years.
- c. Only 6 inmates belonged to the age group of 16-18 years.

8. Education

- a. Among the 5,73,220 prisoners, literacy profile of 2,28,369 (39.8%) prisoners was Below Class X, 1,38,130 (24.1%) prisoners were Class X & above but below Graduation, 41,432 (7.2%) prisoners were having a Degree, 11,347 (2.0%) prisoners were Post Graduates and 7,063 (1.2%) prisoners were Technical Degree/Diploma holders.
- b. A total of 1,46,879 (25.6%) prisoners were Illiterate.

9. Domicile of Origin of Prisoners

- a. Among the 5,73,220 prisoners as on 31st December, 2022, around 90.5% (5,18,515 inmates) of prisoners belonged to the State followed by prisoners belonging to the Other States (8.4%, 48,422 inmates) and prisoners belonging to the Other Country (1.1%, 6,283 inmates).

- b. Among the 1,33,415 convicts, 93.1% convicts (1,24,238 inmates) belonged to the State while 6.0% (7,996 inmates) and 0.9% (1,181 inmates) belonged to the Other States and Other Country respectively.
- c. Haryana has reported the most number of other State domicile convicts (13.5%, 1,082 convicts) followed by Madhya Pradesh (13.4%, 1,072 convicts) and Punjab (7.5%, 601 convicts) as on 31st December, 2022.
- d. Among the 4,34,302 undertrial prisoners, 89.7% (3,89,677 inmates) belonged to the State while 9.2% (39,919 inmates) and 1.1% (4,706 inmates) belonged to the Other States and Other Country respectively.
- e. Uttar Pradesh has reported the highest number of undertrial prisoners of other states (13.3%, 5,306 inmates) followed by Haryana (11.8%, 4,725 inmates) and Delhi (9.8%, 3,898 inmates) at the end of 2022.

Foreign Prisoners

Year	No. of Prisoners at the end of the year	No. of Foreign Prisoners	Share of Foreign Prisoners
2020	4,88,511	4,926	1.0%
2021	5,54,034	5,565	1.0%
2022	5,73,220	6,283	1.1%

- As per data provided by States/UTs.

Note: Figures as on 31st December of the respective year

1. The number of prisoners of foreign nationality (as on 31st December of each year) has increased from 5,565 in 2021 to 6,283 in 2022, having increased by 12.9% during this period.
2. The percentage share of foreign prisoners out of total prisoners has increased from 1.0% in 2021 to 1.1 in 2022 (as on 31st December of each year).
3. Among 6,283 prisoners of foreign nationality at the end of 2022, 5,198 were Males, 1,070 were Females and 15 were Transgenders.
4. Among these foreign national prisoners, 18.8% (1,181 inmates) were Convicts, 74.9% (4,706 inmates) were Undertrials and 0.5% (31 inmates) were Detenues.
5. Among the foreign convicts, the highest number of foreign convicts were from Bangladesh (53.5%, 632 convicts) followed by Nepal (16.9%, 200 convicts),

Myanmar (7.8%, 92 convicts), Nigerians (6.4%, 76 convicts) and Pakistanis (6.3%, 74 convicts) at the end of 2022.

6. West Bengal has reported the highest number of foreign convicts lodged in their jails (39.9%, 471) followed by Uttar Pradesh (8.1%, 96) and Mainpur (6.0%, 71) at the end of 2022.
7. Among the foreign Undertrials, the highest number of foreign undertrials were from Bangladesh (40.4%, 1,902 undertrial) followed by Nigeria (18.4%, 864 undertrial) and Nepal (12.5%, 589 undertrial) at the end of 2022.
8. West Bengal has reported the highest number of foreign undertrial lodged in their jails (30.3%, 1,424) followed by Delhi (14.3%, 672) and Maharashtra (12.1%, 570) at the end of 2022.

Prisoners – Type of Offences

1. Convicts

- a. Among the convicts under IPC crimes (1,17,296) lodged in various jails in the country, around 86.1% of convicts have committed Offences affecting Human Body (1,00,947 inmates) and around 9.4% of convicts have committed Offences against Property (11,076 inmates) as on 31st December, 2022.
- b. Among the convicts of Offences against Human Body, the highest number of inmates were convicted for Murder (63.2%, 63,798 convicts) followed by convicts of Rape (18.0%, 18,138 convicts) and convicts of Attempt to Murder (7.1%, 7,172 convicts) as on 31st December, 2022.
- c. Among the convicts of Offences against Women, the highest number of inmates were convicted for Rape (76.2%, 18,138 convicts) followed by convicts of Dowry Deaths (16.6%, 3,939 convicts) as on 31st December, 2022.
- d. Among the convicts under SLL crimes (15,981) lodged in various jails in the country, the highest number of inmates were convicted under Liquor & Narcotics Drugs - Related Acts (52.3%, 8,352 convicts) followed by convicts of Arms/Explosive - Related Acts (11.7%, 1,863 convicts) and convicts under Crime against SC/ST - Related Acts (4.5%, 718 convicts) as on 31st December, 2022.

- e. Among 1,29,009 convicts who were admitted during the year 2022, the number of habitual offenders were 2,471 (1.9% of convicts admitted).

2. Undertrials

- a. Among the undertrial prisoners under IPC crimes (3,26,825) lodged in various jails in the country, around 63.7% (2,08,299 inmates) of undertrial prisoners have committed Offences affecting Human Body followed by prisoners of Offences against Property (28.4%, 92,917 inmates) as on 31st December, 2022.
- b. Among the undertrial prisoners of Offences against Women, the highest number of inmates were undertrial for Rape (64.2%, 47,138 inmates) followed by undertrials for Dowry Death (21.3%, 15,657 inmates) at the end of 2022.
- c. Among the undertrial prisoners under SLL crimes (1,07,433) lodged in various jails in the country, the highest number of inmates were undertrial under Liquor & Narcotics Drugs - Related Acts (67.2%, 72,217 inmates) followed by undertrial inmates under Arms/Explosive - Related Acts (13.5%, 14,470 inmates) and undertrial inmates under Crime Against SC/ST – Related Acts (4.4%, 4,779 inmates) at the end of 2022.

Prisoners – Sentences & Incarceration

1. Convicts

- a. A total of 544 prisoners, who had been sentenced for Capital Punishment, were lodged in various jails of the country as on 31st December, 2022. Out of these 544 prisoners, 190 prisoners were sentenced for capital punishment during the year 2022.
- b. Among the 1,33,415 convicted prisoners, the number of prisoners who were sentenced to Life Imprisonment were 75,629 accounting for 56.7% of total convicts. This is followed by 15.6% of total convicted prisoners (20,836) who were sentenced for 10 - 13⁺ years of imprisonments and 6.7% of total convicted prisoners (8,901) who were sentenced for 7- 9⁺ years of imprisonments.

2. Undertrials

- a. Among 4,34,302 undertrial prisoners, around 69.0% of prisoners were confined for periods up to 1 year (2,99,503 prisoners), as on 31st December, 2022. Out of this, most number of undertrial prisoners (1,39,245 prisoners) were confined for up to 3 months accounting for 46.5%. This is followed by 85,358 undertrial prisoners who were confined for 3-6 months and 74,900 undertrial prisoners who were confined for 6-12 months.
- b. However, there were also 63,502 undertrial prisoners (14.6% of total Undertrials) confined for 1 to 2 years followed by 33,980 undertrial prisoners (7.8% of total Undertrials) confined for 2 to 3 years and 25,869 undertrial prisoners (6.0% of total Undertrials) confined for 3 to 5 years as on 31st December, 2022.
- c. Also there were 11,448 undertrial prisoners (accounting for 2.6% of total undertrial prisoners) who were confined for more than 5 years.

Prisoners – Releases, Transfers and Movements

The release of convicts has increased by 34.9% (from 93,077 in 2021 to 1,25,533 in 2022) and the release of undertrials has increased by 5.4% (from 14,68,627 in 2021 to 15,48,143 in 2022).

1. Convicts

- a. A total of 1,25,533 convicts were released (including 711 convicts getting transferred to other States/UTs) during the year 2022.
- b. Out of 1,25,533 convicts released, 41.2% of convicts (51,680) were released after completion of conviction period during 2022.
- c. A total of 10,760 convicts were released subsequent to the acquittal on appeal from Higher Courts.
- d. A total of 5,035 convicts were released before completion of sentence awarded.
- e. A total of 110 convicts were pardoned for their offence committed.

2. Undertrials

- a. A total of 15,48,143 undertrial prisoners were released during 2022, out of which 95.0% of undertrial prisoners (14,70,848) were released on bail. Percentage share of Undertrials Released on Bail remained same at 95.0% in 2021 and 2022.
- b. A total of 35,119 undertrial prisoners were released based on acquittal on first instance and 17,484 undertrial prisoners were released subsequent to the acquittal on appeal.
- c. No undertrial prisoners were extradited to foreign countries during 2022.
- d. A total 537 undertrial prisoners were released under Section 436A of CrPC during 2022.

3. Detenues

- a. A total of 8,903 detenues were released during 2022, out of which, 15.3% detenues (1,358) were released on completion of detention period and 72.8% detenues (6,480) were released before completion of detention period.

4. Movements

To Courts:

- a. A total of 36,48,995 times, inmates were taken to the Courts on legal proceedings. Among all the States/UTs, Bihar has reported the highest number of movements of inmates to courts (8,51,977) followed by West Bengal (4,51,356), Delhi (3,29,962) and Uttar Pradesh (2,89,459) during 2022.

To Hospitals:

- a. A total of 4,60,684 times, inmates were taken to the Hospitals. Among all the States/UTs, Chhattisgarh has reported the highest number of movements of inmates for medical assistance (49,812) followed by West Bengal (47,072) and Maharashtra (33,398) during 2022.
- b. There were 9,084 prisoners, who were suffering from mental illness as on 31st December, 2022.

Deaths and illness in Prisons

Year	Total No. of Deaths in Prisons	No. of Natural Deaths	No. of Un-natural Deaths (incl. Suicide)
2020	1,887 ^{\$}	1,642	189
2021	2,116 ^{\$}	1,879	185
2022	1,995 ^{\$}	1,773	159

• As per data provided by States/UTs.

\$ Rajasthan has reported that causes of 56 deaths in 2020, 52 deaths in 2021 and 63 deaths in 2022 were not known.

1. Number of deaths in prisons has decreased from 2,116 in 2021 to 1,995 in 2022, having decreased by 5.7%.
2. Number of deaths due to natural causes has decreased from 1,879 in 2021 to 1,773 in 2022, having decreased by 5.6%.
3. Out of 1,773 Natural Deaths furnished by the States, 1,670 inmates have died due to illness and 103 inmates have died due to ageing.
4. Out of 1,670 deaths due to illness, 25.6% (428) inmates have died due to heart-diseases and 11.4% (190) inmates have died due to lung diseases.
5. Number of un-natural deaths in prisons has decreased by 14.1% from 185 in 2021 to 159 in 2022.
6. Among the 159 un-natural deaths of inmates, 119 inmates have committed suicide, 4 inmates were murdered by inmates, 10 inmates died in accidents and 1 inmates died due to assault by outside elements during 2022. For a total of 63 inmate deaths, cause of the death is yet to be known.

Jail Breaks, Escapees & Clashes/Group Clashes in Prisons

1. A total of 257 prisoners escaped during 2022 where 98 escapees (38.1%) had escaped from police custody and 159 escaped from judicial custody.
2. A total of 113 escapees were re-arrested during 2022.
3. There were 4 incidences of jail break occurred during 2022.
4. 45 instances of clashes/group clashes occurred during 2022.

Rehabilitation and Welfare of Prisons

1. A total of 1,622 convicted inmates were rehabilitated during 2022.
2. A total of 3,159 inmates were given financial assistance on their release during 2022.

3. A total of 1,83,320 inmates were provided legal aid during 2022.
4. The number of prisoners benefitted from Elementary Education, Adult Education, Higher Education and Computer Course were 46,786, 39,888, 12,780 and 5,169 respectively during 2022. Also 42,769 inmates were imparted various vocational trainings by the jail-authorities during 2022.
5. A total of 67,628 inmates had been given medical counselling and 64,899 inmates had been given legal counselling by NGOs during 2022.
6. The total value of goods produced by inmates during 2022 was ` 267.03 Crore.
7. There were 741 NGOs who were working exclusively for prison reforms and 202 NGOs who were working exclusively for welfare of women during the year 2022. However, some NGOs may be working in many States.
8. A total of 418 complaints were received by National Human Rights Commission (NHRC) during 2022. A total of 327 complaints (including previous year pending complaints) were disposed-off during 2022 with a disposal rate of 78.2%.
9. A total of 503 complaints were received by State Human Rights Commission (SHRC) during 2022. A total of 304 complaints (including previous year pending complaints) were disposed-off during 2022 with a disposal rate of 60.4%.

Prison Staff - Strength & Training

1. The sanctioned strength of jail-staff was 91,181 while the actual strength was 63,578 as on 31st December, 2022 due to vacancies not being filled up. Among the jail-staffs, the sanctioned strength of Officers (DG/Addl. DG/IG, DIG, AIG, Supdt. etc.), Jail-cadre Staff (Head Warder, Head Matron, Warder, etc.) and Correctional Staff (Probation Officer / Welfare Officer, Psychologist / Psychiatrist, etc.) were 7,520, 67,642 and 1,468 respectively, while the actual strengths were 5,410 , 48,707 and 820 respectively.
2. The sanctioned strength of Medical Staff was 3,570 while the actual strength was 2,125 as on 31st December, 2022.
3. The actual strength of woman jail officers/staffs was 8,674 (including 295 medical officers/staff).

4. Out of the 63,578 jail staffs, 20.7% (13,180) staffs were trained under various Refresher/Specialised/Re-orientation courses during 2022.

Prison – Budget & Infrastructure

1. The total budget for the financial year 2022-23 for all prisons in the country was ` 8725.0 Crore. The actual expenditure was ` 7781.9 Crore which is 89.2% of total annual budget for FY 2022-23.
2. A total of ` 2528.45 Crore was spent on inmates during FY 2022-23 which is almost 32.5% of total annual expenditure of all prisons for FY 2022-23.
3. Almost 52.5% (` 1326.41 Crore) of total expenses on inmates were spent on Food followed by 5.3% (` 134.98 Crore) on Medical matters, 1.5% (` 38.41 Crore) on Clothing, 0.8% (` 21.14 Crore) on Welfare activities and 0.4% (` 9.91 Crore) on Vocational/Educational trainings.
4. Among all the States/UTs, out of total expenditure, Haryana (100.0%, ` 406.6 Crore) and Mizoram (100.0%, ` 0.3 Crore) has spent the highest share of expenditure on inmates followed by Andhra Pradesh (98.5%, ` 194.17 Crore) and DNH & Daman Diu (86.5%, ` 1.37 Crore) during the Financial Year 2022-23.
5. Among the 1,330 prisons, 309 prisons were renovated/expanded during 2022.
6. Among the 1,330 prisons, 1,150 prisons were having Video Conference facility as on 31st December 2022.
7. A total of 39,333 quarters were available against the actual staff strength of 63,578 as on 31st December, 2022, thus achieving satisfaction rate of 61.9%.

